

1 ENGROSSED SENATE AMENDMENT
TO
2 ENGROSSED HOUSE
BILL NO. 3431
By: Wilk, Woolley, Gise, Adams,
and Hill of the House
and
Gillespie and Deevers of
the Senate

8 An Act relating to foreign government adversaries;
amending 60 O.S. 2021, Section 121, as last amended
9 by Section 1, Chapter 373, O.S.L. 2024 (60 O.S. Supp.
2025, Section 121), which relates to alien or foreign
10 government adversary ownership; modifying definition;
prohibiting a foreign government adversary from
11 owning any interest in critical minerals; and
providing an effective date.

14 AUTHOR: Add the following House Coauthor: Wolfley

15 AMENDMENT NO. 1. Page 1, strike the title, enacting clause and
entire bill and insert

17 "An Act relating to ownership of land; amending 60
O.S. 2021, Section 121, as last amended by Section 1,
18 Chapter 373, O.S.L. 2024 (60 O.S. Supp. 2025, Section
121), which relates to foreign ownership of land;
19 modifying entities prohibited to own land;
prohibiting certain entities from leasing land or
20 critical minerals; updating statutory language; and
providing an effective date.

22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. AMENDATORY 60 O.S. 2021, Section 121, as last
2 amended by Section 1, Chapter 373, O.S.L. 2024 (60 O.S. Supp. 2025,
3 Section 121), is amended to read as follows:

4 Section 121. A. As used in Sections 121 through 127 of this
5 title:

6 1. "Deed" means any instrument in writing whereby land is
7 assigned, transferred, or otherwise conveyed to, or vested in, the
8 person coming into title or, at his or her direction, any other
9 person;

10 2. "Foreign government adversary" means a government other than
11 the federal government of the United States, the government of any
12 state, political subdivision of the state, tribe, territory, or
13 possession of the United States and designated by the United States
14 Secretary of State as hostile or a Country of Particular Concern
15 (CPC);

16 3. "Foreign government enterprise" means a business entity,
17 sovereign wealth fund, or state-backed investment fund in which a
18 foreign government adversary holds a controlling interest;

19 4. "Foreign government entity" means a government other than
20 the federal government of the United States, the government of any
21 state, political subdivision of the state, tribe, territory, or
22 possession of the United States; and
23
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1 5. "Land" means the same as defined in Section 6 of this title,
2 but shall not include oil, gas, other minerals, or any interest
3 therein.

4 B. No alien or any person who is not a citizen of the United
5 States, foreign terrorist organization (FTO) as designated by the
6 United States Secretary of State pursuant to 8 U.S.C., Section 1189,
7 Specially Designated National (SDN) as designated by the United
8 States Department of the Treasury's Office of Foreign Assets
9 Control, or foreign government adversary shall acquire title to ~~or,~~
10 own, or lease land or critical minerals, as determined by the United
11 States Geological Survey, in this state either directly or
12 indirectly through a business entity, trust, or foreign government
13 enterprise, except as hereinafter provided, but they shall have and
14 enjoy in this state such rights as to personal property as are, or
15 shall be, accorded a citizen of the United States under the laws of
16 the nation to which such alien belongs, or by the treaties of such
17 nation with the United States, except as the same may be affected by
18 the provisions of Section 121 et seq. of this title or the Oklahoma
19 Constitution ~~of this state~~. Provided, however, the requirements of
20 this subsection shall not apply to a business entity that is engaged
21 in regulated interstate commerce or has a national security
22 agreement with the Committee on Foreign Investment in the United
23 States (CFIUS) in accordance with federal law.

1 C. On or after November 1, 2023, any deed recorded with a
2 county clerk shall include as an exhibit to the deed an affidavit
3 executed by the person, the person's attorney-in-fact, a court-
4 appointed guardian or personal representative, an authorized officer
5 of the entity, or trustee of the trust coming into title attesting
6 that the person, business entity, or trust is obtaining the land in
7 compliance with the requirements of this section and that no funding
8 source is being used in the sale or transfer in violation of this
9 section or any other state or federal law. A county clerk shall not
10 accept and record any deed without an affidavit as required by this
11 section which is duly notarized pursuant to Title 49 of the Oklahoma
12 Statutes. The requirements of this subsection shall not apply to a:

13 1. Deed which, without additional consideration, confirms,
14 corrects, modifies, or supplements a deed previously recorded;

15 2. Deed made by a grantor to cure a defect in title or
16 effectuate a disclaimer of interest in real property;

17 3. Transfer-on-death deed made by a grantor designating a
18 grantee beneficiary pursuant to the Nontestamentary Transfer of
19 Property Act, Section 1251 et seq. of Title 58 of the Oklahoma
20 Statutes;

21 4. State or federal court order in an action to quiet title or
22 to cure a defect in title;

23 5. State or federal court order or decree in probate,
24 partition, quiet title, and divorce actions;

1 6. Deed which secures a debt or other obligation, or which
2 releases such property as security for a debt or other obligation;

3 7. Deed of dedication to the public; or

4 8. Deed in favor of the United States or any of its political
5 subdivisions, a state or any of its political subdivisions, or a
6 tribe.

7 The applicable exemption shall be shown on the face of the deed
8 prior to the recording of the deed and no affidavit shall be
9 required.

10 D. The Attorney General shall promulgate a separate affidavit
11 form for individuals and for business entities or trusts to comply
12 with the requirements of this section. The Attorney General may
13 establish additional exemptions which the Attorney General deems
14 necessary to substantially comply with the requirements of this
15 section. The county clerk may accept an affidavit in substantial
16 compliance with the affidavit form promulgated by the Attorney
17 General.

18 SECTION 2. This act shall become effective November 1, 2026."
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1 Passed the Senate the 29th day of April, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

7
8 _____
9 Presiding Officer of the House
10 of Representatives

1 ENGROSSED HOUSE
2 BILL NO. 3431

By: Wilk, Woolley, Gise, Adams,
and Hill of the House

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4 Gillespie and Deevers of
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7 An Act relating to foreign government adversaries;
8 amending 60 O.S. 2021, Section 121, as last amended
9 by Section 1, Chapter 373, O.S.L. 2024 (60 O.S. Supp.
10 2025, Section 121), which relates to alien or foreign
11 government adversary ownership; modifying definition;
12 prohibiting a foreign government adversary from
13 owning any interest in critical minerals; and
14 providing an effective date.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 3. AMENDATORY 60 O.S. 2021, Section 121, as last
17 amended by Section 1, Chapter 373, O.S.L. 2024 (60 O.S. Supp. 2025,
18 Section 121), is amended to read as follows:

19 Section 121. A. As used in Sections 121 through 127 of this
20 title:

21 1. "Deed" means any instrument in writing whereby land is
22 assigned, transferred, or otherwise conveyed to, or vested in, the
23 person coming into title or, at his or her direction, any other
24 person;

2. "Foreign government adversary" means a government other than
the federal government of the United States, the government of any

1 state, political subdivision of the state, tribe, territory, or
2 possession of the United States and designated as a foreign
3 government adversary by the United States Secretary of State as
4 hostile or a Country of Particular Concern (CPC);

5 3. "Foreign government enterprise" means a business entity,
6 sovereign wealth fund, or state-backed investment fund in which a
7 foreign government adversary holds a controlling interest;

8 4. "Foreign government entity" means a government other than
9 the federal government of the United States, the government of any
10 state, political subdivision of the state, tribe, territory, or
11 possession of the United States; and

12 5. "Land" means the same as defined in Section 6 of this title,
13 but shall not include oil, gas, other minerals, or any interest
14 therein.

15 B. No alien or any person who is not a citizen of the United
16 States or foreign government adversary shall acquire title to or own
17 land in this state either directly or indirectly through a business
18 entity, trust, or foreign government enterprise, except as
19 hereinafter provided, but they shall have and enjoy in this state
20 such rights as to personal property as are, or shall be, accorded a
21 citizen of the United States under the laws of the nation to which
22 such alien belongs, or by the treaties of such nation with the
23 United States, except as the same may be affected by the provisions
24 of Section 121 et seq. of this title or the Constitution of this

1 state. Provided, however, the requirements of this subsection shall
2 not apply to a business entity that is engaged in regulated
3 interstate commerce or has a national security agreement with the
4 Committee on Foreign Investment in the United States (CFIUS) in
5 accordance with federal law.

6 Furthermore, no foreign government adversary, as determined by
7 the United States Department of Energy, shall acquire any ownership
8 or leasehold interest in any critical minerals, as determined by the
9 United States Geological Survey, within the state.

10 C. On or after November 1, 2023, any deed recorded with a
11 county clerk shall include as an exhibit to the deed an affidavit
12 executed by the person, the person's attorney-in-fact, a court-
13 appointed guardian or personal representative, an authorized officer
14 of the entity, or trustee of the trust coming into title attesting
15 that the person, business entity, or trust is obtaining the land in
16 compliance with the requirements of this section and that no funding
17 source is being used in the sale or transfer in violation of this
18 section or any other state or federal law. A county clerk shall not
19 accept and record any deed without an affidavit as required by this
20 section which is duly notarized pursuant to Title 49 of the Oklahoma
21 Statutes. The requirements of this subsection shall not apply to a:

22 1. Deed which, without additional consideration, confirms,
23 corrects, modifies, or supplements a deed previously recorded;
24

1 2. Deed made by a grantor to cure a defect in title or
2 effectuate a disclaimer of interest in real property;

3 3. Transfer-on-death deed made by a grantor designating a
4 grantee beneficiary pursuant to the Nontestamentary Transfer of
5 Property Act, Section 1251 et seq. of Title 58 of the Oklahoma
6 Statutes;

7 4. State or federal court order in an action to quiet title or
8 to cure a defect in title;

9 5. State or federal court order or decree in probate,
10 partition, quiet title, and divorce actions;

11 6. Deed which secures a debt or other obligation, or which
12 releases such property as security for a debt or other obligation;

13 7. Deed of dedication to the public; or

14 8. Deed in favor of the United States or any of its political
15 subdivisions, a state or any of its political subdivisions, or a
16 tribe.

17 The applicable exemption shall be shown on the face of the deed
18 prior to the recording of the deed and no affidavit shall be
19 required.

20 D. The Attorney General shall promulgate a separate affidavit
21 form for individuals and for business entities or trusts to comply
22 with the requirements of this section. The Attorney General may
23 establish additional exemptions which the Attorney General deems
24 necessary to substantially comply with the requirements of this

section. The county clerk may accept an affidavit in substantial compliance with the affidavit form promulgated by the Attorney General.

SECTION 4. This act shall become effective November 1, 2026.

Passed the House of Representatives the 23rd day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the _____ day of _____, 2026.

Presiding Officer of the Senate